

FELINE PHILOSOPHY
BY THOMAS CAT

WALTER LÉON HESS

FELINE PHILOSOPHY

BY THOMAS CAT

WALTER LÉON HESS

The Project Gutenberg eBook of Feline Philosophy

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Feline Philosophy

Author: Walter Léon Hess

Release date: June 9, 2013 [eBook #42897]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/42897

Credits: Produced by The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive.)

*** START OF THE PROJECT GUTENBERG EBOOK FELINE
PHILOSOPHY ***

FELINE PHILOSOPHY

BY THOMAS CAT

RENDERED INTO ENGLISH
BY
WALTER LÉON HESS



BOSTON
RICHARD G. BADGER
THE GORHAM PRESS

COPYRIGHT, 1919, BY WALTER LÉON HESS

All Rights Reserved

Made in the United States of America

The Gorham Press, Boston, U. S. A.

*I have nine lives
And a number of wives—
But at last I must put a ban
On feline ways
And midnight lays
For now I live with man!*



FELINE PHILOSOPHY
BY THOMAS CAT



FELINE PHILOSOPHY

BY THOMAS CAT

FIRST CATERWAUL

The family have gone to the country,
Horton, his wife and four children.
They took the butler and maids, the dogs,
The canaries and parrot. Shutters
They put on the house and the keys
Are turned in the locks. The silver
Was put in the vault and everything
Valuable carefully stowed....

Little Jack

Looked well for me. But when he found me
Was told to put me outside; a cat has no
Place in a house that is closed for
The summer.

When they were sorely troubled
With rats and mice they coaxed me to
Come to live in the cellar. They fed
Me richly on cream and the choicest
Bits from their lavish table. They gave
Me a rug to sleep, and taught the children
To pet me. All took turns to feed me and
They saved the bones of each fish.

The

Mice and rats disappeared; the rug
Is filthy, in tatters. Old Horton curses
And kicks me and kicks me down stairs when he
Meets me; warns the baby to heed my
Claws and the older children that
Cats breed all sorts of diseases. Edith
Has young men to call and “cannot abide
The cat that is covered with ashes.”
Only Jack remembers—which reminds me
How well I was treated. I was young when

They found me and now have grown wise in
Their councils.

I have no food and no
Lodging.



SECOND CATERWAUL

It's more than a week since I've eaten
And my bed is made in the gutter. Well-fed
And beggars go by and their boots are
All alike ready as soon as they spy me.
Jack Horton went by with his father and
Stooped to whisper his secret. Old Horton
Jerked his arm and urged that he'd miss
The train. So even railroad time
Seems relentless as the procession
Passes over and about me. Between buying
A new suit for his party
And his affection
Even young Jack had no choice.
Now I have to hunt
And I've eaten a sparrow for breakfast.
I ate with infinite relish
Though I never ate one before;
I was starved and the murder and crime
Were lost in my terrible necessity.
My depravity is beginning to wear....
I shall wander down to the river....
I have heard Jack's father say:
When a man falls so low as that
He had better drown himself than—
I've forgotten the rest; I cannot think
In my present state of mind.

THIRD CATERWAUL

Arrived at the wharf there was not
Another soul in sight ... except at the very end
Where sat a most woebegone looking Tramp
Smoking what was once a cigar
Of price. Half smoked it had been thrust
In the gutter at the theater-entrance
By a careless and prosperous merchant.
The Tramp was very near to the edge looking out
Over the water as blankly as a blind man.
A man! Look at him ... and I a mere cat!
No doubt Old Horton was right.... One leap
Into the darkness and all gloomy thoughts,
All trouble, like the half-finished cigar
Would give place to beautiful dreams and
Never-ending.... At least it cannot be much
Worse.... No! Far better than the foul gutter
And the murderous cravings for the unattainable.
I shall burst my bonds and jump in.



FOURTH CATERWAUL

It gave a terrible fright when I struck
The water. Even in filth and mud I found it more
Pleasure to swim than to drown. How comfortable
The gutter now seemed but my strength was
Utterly useless.... My thoughts had been
Less overwhelming than the murky slime that
Would kill me ... and to sink, to be swallowed
By fishes that had been sweet food for my palate.
A boat came out of the darkness and a brown
Arm folded me up from the last gasp in the river.
It was going out to a yacht and the mate was the
Man who rescued: "What luck with our rats and mice
To find this bedraggled feline.... Maggie can give
It some milk and the Master won't curse for the
Vermin...."

Perhaps I was born as an antidote!
Perhaps I have no choice what to do!
But whatever may be I shall at least do
What is expected, the best that I can—
How else can I expect anything?

FIFTH CATERWAUL

Did you ever see a palace in a desert?
Ralph Dimon was a good catch and Irene's
Father was very rich. Low necked dress,
Dress clothes, lace, jewelry, curtains of
Fine brocade, mahogany panellings and
Nickel-mountings dimmed the lights of Brough's
Yacht and were more plentiful than the drops
Of water that had nearly drowned me.
As I was lifted over the side I saw the
Two lovers lounging in the bow where there
Were no lights; while inside the electric
Lamps burned neglected. The wind blew a gale
And I shivered; but comfortable surroundings
And even diamonds would warm anybody but a
Half drowned cat....

I wonder if pink ribbons
And a silver-mounted collar would have made
Me warmer or less hungry ... and I was most
Interested because Irene's father never paid
His bills without a lawsuit.... Perhaps I might
With ribbon and collar have had food for the asking.
But an honest cat must be kicked around
The kitchen by Maggie. Maggie was used to it:
"Haven't you better sense than to bring such
Rubbish aboard, Jim? Old Brough will miss the
Milk and there'll be the devil to pay."—And
To think how I could rid this palace of vermin....
But that would cost Father Brough money and
It wouldn't show....
Jim put me ashore ... but I was grateful!



SIXTH CATERWAUL

What a terrible contrast: from an interrupted
Yachting trip to the garbage can! The smell
Of the sea is sweeter but I wasn't dressed
For it.... The lure of a square meal is sweeter
Than the glitter of paste.

Think of finding a
Half beefsteak on top of the can! There was no
Gravy but it was cooked to perfection. I ate it
With relish, but should have enjoyed it better
If only some one would let me work for it—
Especially such a meal.... And yet they say beggars
Cannot be choosers.... I found a lot more in the can
To eat, but the steak satisfied me.
I was very tired; so I went to sleep beside the
Can....

When the collector came he took counsel of
My presence and hunted through to see what he could
Find of value. He looked up and down the street
And then slipped a half-roasted-chicken into his
Blouse; but not before casting me a look of
Triumph.... But I never can eat two meals at a
Sitting and chicken doesn't agree with me. Then,
Too, even honey is nourishing, but it may give
One indigestion.... I hope he enjoyed the chicken
As much as I did my banquet....

Why, thought I, not
Offer to stay in this house where plenty runs
To overflowing....

It proved to be Brough's!



SEVENTH CATERWAUL

I prefer the street and the gutter
To the hospitality Brough's might have offered.
How lucky to be a cat
Free to accept or—refuse
What is offered!



EIGHTH CATERWAUL

I found a door that was open.
The grass in the entry was cut close;
The hangings and drawing-room furniture
Immaculate in their smug neatness. Even the
Windows were clean and the books on the
Shelves were well dusted. I wandered into
The kitchen where oilcloth was spotless
And tidy. Even the walls were fresh-papered....
No doubt to keep the kalsomine-water
From evaporating....

Table-manners in such
A house, I fear, are more real than the eating.
I turned about and went out lest the hairs
In my coat might scatter.



NINTH CATERWAUL

I have been housed with Jerolamon Jones
And his wife, whom they call “tame cat,”
For what seems a fairly long time. Jerry
They call him for short and short is the Bible
He reads. Lovers they are to the world and
To each other still more—for that is the
Judgment that counts.... Jerry has nights
“At the club” and loves his dear wife’s
Friends. She can always reach him by ’phone
But she wouldn’t do it for worlds as she
Trusts him beyond cavil or guile....
And the tame cat sits on the laps of a
Dozen or more of his friends—but only
When Jerry is home.

I followed Jerry one night
But his club was not where he went....
We came home exactly at twelve—and Marion
(That was his wife) was fast asleep in the sheets.
Fulton had kissed her that night—and of course
She told Jerry next day.... He trusted his wife
As she him....

They were playing the game
When I left—I left because only I
Knew how to end the farce!

TENTH CATERWAUL

I have wandered over the city aimless and homeless,
Hungered in mind and in body.
Days are not irksome in sunshine
And rain promises more when it ceases.
But the nights are so intimate
And the rays of one's mind
Are perlucid.
Like a criminal tracing his steps
Back to the scene of iniquity,
I found myself in Horton's neighborhood....
But the house was still closed for the summer.



ELEVENTH CATERWAUL

Mrs. Horton's maid, Alice, came home
With the keys. She left the window open
When she went to the corner for food.
I took unfair advantage—thus experience has taught me—
Climbed in at the first opportunity.
I hid in her bedroom—the only door that was open.
After all I had suffered
Perhaps Jack would come back
And then my troubles be over.
For the first time in months
I slept without fear and in comfort....
It must have been after midnight
When Old Horton came in. It was pitch dark
So he couldn't see me. It gave me uncanny pleasure
To follow him. He stole up to Alice's room
As if a hundred were watching. The door remained
Gaping to the empty house and—me.
Presently Alice screamed and the harrowing sound
Frightens me even now.
Horton went back to his room
And the house resumed its stillness.
I sat on the floor by his bed
Lulled by his heavy breathing....
Out of the darkness there gleamed
A flash from the crack of a pistol.
Alice was fully dressed and quietly turned on her heel;
Left the house by the basement; walked to the corner
And river; threw something deep in its water; then back
To the house where she'd killed him—
Leaving the front door open.... I followed her up to her room
Where she undressed and went back to bed....
Dead in his they found Horton,

And on his tomb they inscribed:

“A LOVING FATHER AND DEVOTED HUSBAND.”



TWELFTH CATERWAUL

I've been sitting in the gutter and wondering—
Strange dreams come to me in strange places—
The glare of approaching motor
Bewildered my thoughts still more.
I saw stranger things in the shadows
Than the glow of the lights revealed.
And the deepest shadows
Close behind the gleaming arcs of the motor
Showed heads that were snuggled close.
Edith Horton was one
And Brough—who is married—the other.
No matter how dark the night its shame is refulgent
To Heaven.
The chain of my reverie was broken
As the lash will draw blood from the purest....
And yet I am only a cat that was nearly
Run over!



THIRTEENTH CATERWAUL

Jack Horton has taken me back—
His father's boots are now mouldy.
Edith does charity work and teaches in
Sunday-school. Brough is the superintendent....
The mortgage on Mallory's house
Was foreclosed on Saturday morning.
Mallory, wife and six children
Were sitting out on the street,
Their shabby trappings about them....
A syndicate bought the house
From Brough—his profit was ten thousand dollars.
Brough is rolling in wealth.
But Mallory now and Brough
Will seem to me much more alike:
Neither will pay his bills.
... But Jack is kind to me
And Brough's not the milk
That I drink!



FOURTEENTH CATERWAUL

When Mallory worked in the shops
He drank up the wages he earned.
Now that he's out of a job
He's docile and kind to his wife
And dawdles the baby all day.
Old Horton used to say that Mallory
Was a good mechanic and a bad father.
Thus do critics fall out—Now that Old Horton
Is dead
He could not reverse his opinion
Nor the marble slab on his grave.
Joe Mallory was always Jack's chum; so Jack got after
His friends.... Now he's delighted and proud
For he found Mallory a job
Which Mallory thoroughly liked and took
For the price of giving up drink.



FIFTEENTH CATERWAUL

Edith was reading the paper
Breakfasting on the couch
At the foot of which I sat.
Her face was as pale as a ghost.... She read
Something twice out loud:
“James Brough in the Bankruptcy Court.
Squandered his fortune on women;
Many society girls in his net.”
She fainted just as her mother came in; so I
Quietly left the room....
And yet there is now a law
That the lamps of motors be dimmed!



SIXTEENTH CATERWAUL

Jack and his older brother went to the wharf
As Ralph Dimon is going abroad.
He's going to stay for some time....
Irene's been released
From a very long engagement.
Not only for mourning it seems
That weddings are postponed.
Irene looks dejected and weary—
She came to see Edith this morning.
The two are off for the mountains together....
They say Ralph was richer than Brough.



SEVENTEENTH CATERWAUL

They are sending Jack to boarding-school—
He debated long should he take me?
If only I were a dog!—but grown boys
Don't make pets of cats....
He doesn't know why he's going away—
But I do: Alice, the maid, is in trouble
And Mrs. Horton is shocked—and doesn't
Want Jack to know.



EIGHTEENTH CATERWAUL

Ever since Jack went away
Mrs. Horton has looked after me.
The day he left
She came to the window
And threw out Old Horton's boots.
At first I thought they were thrown
At me—but it seems that she threw them
Wide of the window!
When I voiced my surprise
She hurried to me and now
I sleep on her divan!



NINETEENTH CATERWAUL

Clarence Horton, Jerolamon Jones and a few
Of the other young bloods had a party last night—
Hunt breakfast they called it, I think.
They started by talking of dogs—hounds and
Horse-flesh and mounts. I gathered that sort of sport
Leaves all the toil to the dogs
And the glory and brush to the hunter.
For this kind of thing
They were well fit—
And none of them went home too sober!



TWENTIETH CATERWAUL

Mrs. Horton sent Alice away—she left last night
After dark.
It was better the neighbors
Shouldn't see!
There was no reason therefore
To send poor Jack away!—
Perhaps it was just as well?
Mrs. Horton wouldn't have Alice around
Lest it embarrass Edith and—her....
I followed Alice some way and she seemed
Quite cheerful enough.
Waiting is much the same
No matter what one expects.



TWENTY-FIRST CATERWAUL

Brough is through with the Courts
And continues to ride in his car.
He called for Edith last night
When Mrs. Horton was out—she had gone
To the hospital where Alice was
Supposed to have gone....

Brough's chauffeur
Isn't paid but it's the only way to get what
One wants—to keep right on
Especially when fishing for eels!
Brough is a financier—the rest of us
Only fish!



TWENTY-SECOND CATERWAUL

In my morning stroll I found
The Jerolamon Jones' door stood open;
I looked about and went in
But received a scanty welcome—
Indeed I was promptly chased out
By the maid.
This afternoon Mrs. Jones called
To beg Mrs. Horton
To loan her the valuable cat
As the maid had discovered
A mouse.
Thus do values increase
And appreciation follow apace!



TWENTY-THIRD CATERWAUL

The maid that had chased me out
Fondled me as she carried me over
Till my fur bristled....

The mice have
Disappeared—I finished as luncheon was served,
And sat by the serving-table.
But the Joneses all ate so much
That I wasn't even noticed—and when I was,
They sent me back to the Horton's
At once....

Mrs. Horton fed me herself!



TWENTY-FOURTH CATERWAUL

I saw the maid, Alice, last night;
She was wandering near the bright lights
And the carnivorous shadows—Shadows
That burned to my soul as I saw her
Speak to a man. They went down the street
Together, the veil of darkness hid them,
And when I got home Mrs. Horton
Was telling a friend that “Alice
Was lost beyond any redemption; at any rate
She herself could no longer help!”—
What problems beset our family!



TWENTY-FIFTH CATERWAUL

Jack was home for Christmas
But I saw him hardly at all—
To the front door he now has a key
And the hours he keeps are quite varied.
One morning he slept very late
And the name that he spoke in his dreams
Was “Alice.”
Mrs. Horton was proud of her son and the party
She gave him was sumptuous.



TWENTY-SIXTH CATERWAUL

We have a new cook at the Horton's
Who saves the bean water for soup....
I've enjoyed such broth at the Mallory's,
But at the Horton's!!!—
And their bills are always as large
As before Bridget was installed.
But Edith and Mrs. Horton are pleased
And the baby and I can't complain!!



TWENTY-SEVENTH CATERWAUL

There's a new baby at the Mallory's
And the rest of the children are pleased;
Mallory and his wife are as happy as larks....
Edith Horton has a toy Angora
And Mrs. Horton has forgotten me—
Indeed she has put me out....
Again I must wander the streets!



TWENTY-EIGHTH CATERWAUL

I followed Alice last night
Down to her alley and room—
She stooped as she entered her door
And petted me much as she used to....
Then she cuddled her baby and seemed
Far fonder of it than Mrs. Horton of hers
And nearly as much
As Edith of her angora....



TWENTY-NINTH CATERWAUL

I sat on the curb at the corner
Just outside the saloon
Where politics rule and
Presidents are made and unmade.
Two men were discussing the War...
And when they were through, the conclusion
Was discussion untempered by argument...
Unconvinced I went on my way.



THIRTIETH CATERWAUL

All afternoon I sat in the shade
Of a hideous skyscraper
On the Avenue.
Women of all sorts went by
And their footgear and stockings
Were varied.
Skirts that our grandmothers used
To clothe five- and ten-year-old girlies
Revealed twelve inches of hose—
Nor the three-shade boots that shod them
Would help a Chinaman guess
The age of the wearers who proudly
Boasted this awful foundation....
And yet are most of the women
Sweet-souled and modest....
I polished my claws once again!



THIRTY-FIRST CATERWAUL

I looked in at the restaurant window
Through which gleamed a medley of color—
Diamonds, pearl pendants and rubies,
And ruby and gold was the wine
Blazing first in glasses rich-stemmed,
Then blazoned bright in the glances
Of women;
Some with their husbands and fathers,
Others leering and brazen—
But my milk tasted sweeter
Next morning, for to the poor
All things are pure!



THIRTY-SECOND CATERWAUL

I hadn't eaten for hours
And all the house doors were shut—
The heat of the sun was oppressive
So I languished in the shade,
Though my appetite was appalling....
Beside there were plenty of sparrows
Ready to eat when I chose to....
But when the sun was gone,
So were the sparrows!



THIRTY-THIRD CATERWAUL

The Mallorys have taken me in....
Mallory says: one more to feed....
But the children like it to play
And it looks like Horton's old cat
So it's certain to be a good one....
Even if discarded.



THIRTY-FOURTH CATERWAUL

Mrs. Mallory read from the paper
Where wise ones answer fool's queries
And this was one of the questions:
Is it possible a woman
Who has bitten her nails all her life
Since first she had teeth
Could so cause her baby
The affliction of two thumbs on one hand?...
Did they ever think that of cats?



THIRTY-FIFTH CATERWAUL

If we really had nine lives,
None akin to the others
And all the hopes of each life
Were answered in the next,
Perhaps a cat's existence would
Still be unsatisfactory?



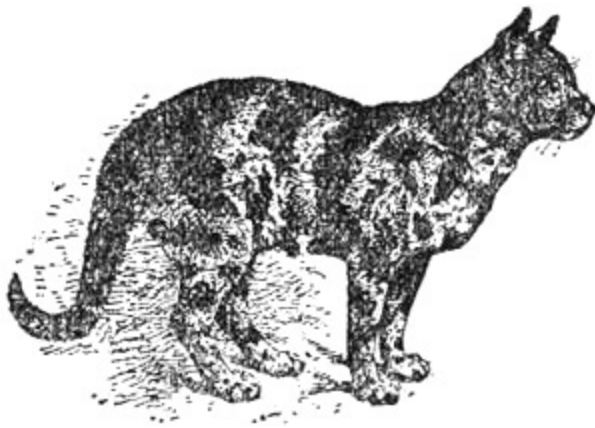
THIRTY-SIXTH CATERWAUL

Joe Mallory told Jack about Alice—
At least of her fate.
Jack found her address
And wanted to help....
And yet there are some
Who believe heredity infallible!



THIRTY-SEVENTH CATERWAUL

While Jack tried to smother
Alice's wild burning fires
Joe never obtruded—
But when Jack was not watching
Joe brought more wood
To the kindling....
Still they were friends.



THIRTY-EIGHTH CATERWAUL

You should have read Brough's
Obituary.... He died
When he'd rescued a fortune
By making hardware and debts:
... MOST RESPECTED MERCHANT ...
PHILANTHROPIST.... Loss to
The Community ... and over a
Dozen "Resolved's."
The Merchants' Club framed his picture.
And to think
Generations of men proudly
Will claim his descent!



THIRTY-NINTH CATERWAUL

Edith Horton is married—
(Joe Mallory went to the wedding)—
Many a thorn-edge is dulled
By brushing it by in a hurry....
And roses often change hue
Between the bright sun and the limelight.



FORTIETH CATERWAUL

I watched a man cranking his motor.
It stalled....
He tinkered with levers
Till he gave it up in despair
And stood disconsolate staring.
When he cranked it again
It started so quickly
That it raised the hair of my coat.



FORTY-FIRST CATERWAUL

Jones' collie and Mallory's hound
Were discussing a new-found bone
With vicious snarling and snapping
And other unseemly behaviour....
On the fence above them I sat
Distressed....
Neither dared touch the prize....
Nor would either allow the other.
Then Jerry and Joe both whistled....
The bone lies forgotten and wasted.



FORTY-SECOND CATERWAUL

It grew very warm in the house,
The Mallorys mopping and sweating—
Perspiration is fuel for temper—
Even I couldn't stand the heat
Nor tell them no windows were open....
But cats are always too obvious;
So I went out for a walk.



FORTY-THIRD CATERWAUL

Alice is dead of consumption....
All Jack's efforts were useless;
Disconsolate he tried to comfort
The last of her wasted moments....
"God will forgive you," he whispered....
Yet who is the judge of the Damned?—
And Joe is much disappointed
Though he feels he may have hurried
Alice's end.... I wonder
What I repent?—or is it only
Regret?



FORTY-FOURTH CATERWAUL

All my life I have studied
The passerby-faces
And known them....
Sometimes they noticed me;
Others more often seemed
Unconscious I saw them.
I wondered what they were thinking....
Or had they no thoughts
But like wax that responds
To momentary impressions?
I'm sure I read all the faces....
Did I know them—
Except when they kicked me
Or petted?



FORTY-FIFTH CATERWAUL

At last I have to confess
That all my judgment is blinded!
Jack and Joe are now partners,
Croesus and Job united
In one homogeneous effort....
And yet my kind make nights hideous
By howling continuous calamity!



FORTY-SIXTH CATERWAUL

Now that the Mallorys have money
They haven't changed the brand
Of my milk nor their butcher.
They wear more clothes
And better; but they still
Continue to pet me.



FORTY-SEVENTH CATERWAUL

Joe sent Pat Mallory through college;
Up there Pat says that his father
Is Superintendent of power—
Old Mallory's just a plain foreman—
But Pat still with reason
Differs
From the verdict given by Horton,
For Pat still worships his father,
And still calls me
Poor old Cat....



FORTY-EIGHTH CATERWAUL

I heard Pat talking of college—
Some of Pat's friends have been visiting—
I wondered what they were learning!
Pat is surely improving.
Still Joe would always have prospered
In or out of a college—
And yet I shall always be
Just a cat.



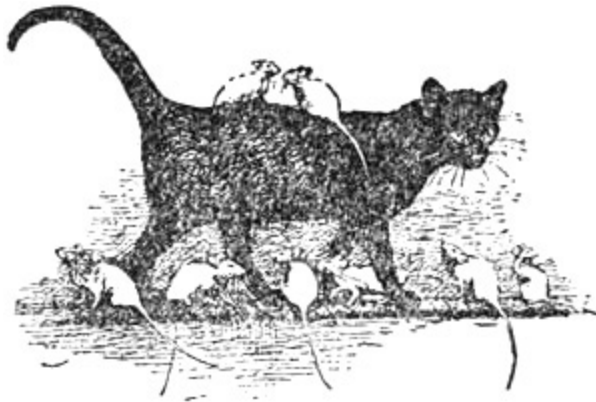
FORTY-NINTH CATERWAUL

I've watched in the rain and snow
Sunshine and cloudy weather
For any change in my spirit;
But whether I've eaten a fish
Or had just a drink of milk,—
Only that I found made
A difference.



FIFTIETH CATERWAUL

Go on with your work—
Patient Stranger!
I've told you enough of my
Wanderings.
The Mallorys are troubled with mice
And never close house for the summer!



*** END OF THE PROJECT GUTENBERG EBOOK FELINE
PHILOSOPHY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.